

STATE OF NEW YORK

269--A

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. PAULIN -- read once and referred to the Committee on Health -- recommitted to the Committee on Health in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the correction law and the social services law, in relation to the enrollment of incarcerated individuals in the medical assistance for needy persons program

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 71 of the correction law is amended by adding a new
2 subdivision 9 to read as follows:

3 9. (a) The commissioner shall take all steps necessary to enroll into
4 the medical assistance for needy persons program under title eleven of
5 article five of the social services law any eligible individual commit-
6 ted to the custody of the department, unless the department determines
7 that such application is unnecessary because the individual was enrolled
8 in the medical assistance program at the time of their incarceration and
9 is expected to remain so at the time of release or because the individ-
10 ual is ineligible for enrollment in such program or does not wish to be
11 enrolled. Provided, however, that no such medical assistance shall be
12 furnished for any care, services, or supplies provided during such time
13 as the person is incarcerated except as authorized under subdivision
14 one-a of section three hundred sixty-six of the social services law. For
15 individuals successfully enrolled under this subdivision, any documents
16 relating to enrollment shall be kept in the individual's records until
17 the individual's release from custody, at which time such documents
18 shall be provided to the individual.

19 (b) Where an individual is found ineligible for the medical assistance
20 program, the department shall make diligent efforts to determine whether
21 the individual is eligible for any other medical insurance program and,

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 if so, assist the individual in applying to the program for which they
2 are eligible if they wish to enroll in such program.

3 § 2. The correction law is amended by adding a new section 500-r to
4 read as follows:

5 § 500-r. Medicaid enrollment. 1. Where practicable, for any eligible
6 individual incarcerated in a local correctional facility, the super-
7 intendent of such facility shall take all steps necessary for enrollment
8 into the medical assistance for needy persons program under title eleven
9 of article five of the social services law, unless the superintendent
10 determines that such application is unnecessary because the individual
11 was enrolled in the medical assistance program at the time of their
12 incarceration and is expected to remain so at the time of release, or
13 because the individual is ineligible for enrollment in such program or
14 does not wish to be enrolled. Provided, however, that no such medical
15 assistance shall be furnished for any care, services, or supplies
16 provided during such time as the person is incarcerated except as
17 authorized under subdivision one-a of section three hundred sixty-six of
18 the social services law. For individuals successfully enrolled under
19 this subdivision, any documents relating to enrollment shall be kept in
20 the individual's records until the individual's release from custody, at
21 which time such documents shall be provided to the individual.

22 2. Where an individual is found ineligible for the medical assistance
23 program, the superintendent shall make diligent efforts to determine
24 whether the individual is eligible for any other medical insurance
25 program and, if so, assist the individual in applying to the program for
26 which they are eligible if they wish to enroll in such program.

27 § 3. Paragraph (b) of subdivision 3 of section 366-a of the social
28 services law, as amended by chapter 41 of the laws of 1992, is amended
29 to read as follows:

30 (b) notify the applicant in writing of the decision, and where such
31 applicant is found eligible, provide a tamper resistant identification
32 card containing a photo image of the applicant for use in securing
33 medical assistance under this title provided, however, that an identifi-
34 cation card need not contain a photo image of a person other than an
35 adult member of an eligible household or a single-person eligible house-
36 hold. The department is not required to provide, but shall seek practi-
37 cal methods for providing, a card with such picture to a person when
38 such person is homebound or is a resident of a residential health care
39 facility, or an in-patient psychiatric facility, or is expected to
40 remain hospitalized for an extended period. Where the applicant is
41 incarcerated by the department of corrections and community supervision
42 or in a local correctional facility as defined in section two of the
43 correction law, the appropriate social services official or the depart-
44 ment of health or its agent shall provide such identification card to
45 the department of corrections and community supervision or local correc-
46 tional facility for keeping with the incarcerated individual's records
47 until such individual is released. The commissioner shall have the
48 authority to define categories of recipients who are not required to
49 have a photo identification card where such card would be limited,
50 unnecessary or impracticable.

51 § 4. Section 71 of the correction law is amended by adding a new
52 subdivision 10 to read as follows:

53 10. (a) The commissioner, in consultation with the commissioner of
54 health, shall study and report annually on enrollment in the medical
55 assistance for needy persons program of applicants in the custody of the

1 department or local correctional facilities. The report shall include
2 how many individuals in the custody of each facility were:

3 (i) enrolled in medical assistance or other medical insurance programs
4 at the time of their incarceration;

5 (ii) enrolled into such programs during their incarceration, including
6 whether they were enrolled through social services districts or the New
7 York State Health Benefits Exchange portal;

8 (iii) released with proof of enrollment in such programs; and

9 (iv) released without proof of enrollment in such programs.

10 (b) The first report under this subdivision shall be completed and
11 submitted to the governor, the temporary president of the senate, and
12 the speaker of the assembly no later than one year after the effective
13 date of this subdivision.

14 § 5. This act shall take effect on the one hundred eightieth day after
15 it shall have become a law. Effective immediately, the commissioner of
16 health, the commissioner of corrections and community supervision, and
17 the superintendents of local correctional facilities shall make regu-
18 lations and take other actions reasonably necessary to implement the
19 provisions of this act on its effective date.